

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Philip A. Brimmer

Civil Action No. 08-cv-00495-PAB-MJW

REGISTRY SYSTEMS INTERNATIONAL, LTD.,

Plaintiff,

v.

VINCENT HAMM,
AIM HIGH!, INC.,
KAIM CHIGH, LLC, and
1 DOMAIN SOURCE, LTD.,

Defendants and Third-Party Plaintiffs,

v.

EDWARD J. SWEENEY,
CHARLES A SWEENEY, and
CAPITAL NETWORKS, PTY., LTD., A/K/A PACNAMES, LTD.,

Third-Party Defendants.

FINAL JUDGMENT

Pursuant to and in accordance with Fed. R. Civ. P. 58(a); with the orders entered during the course of proceedings in this case by Judge Philip A. Brimmer; with a verdict entered after a trial to jury that commenced on April 12, 2010 and continued through April 20, 2010, before a duly sworn jury of nine, Judge Philip A. Brimmer presiding; and furthermore, in accordance with the Order entered on January 28, 2011, by Judge Philip A. Brimmer, which is incorporated herein by reference as if fully set forth, the following are matters are hereby

ORDERED and ENTERED for purposes of FINAL JUDGMENT:

All claims by and against Kim Keeling have been dismissed by voluntary stipulation.

Final judgment has entered as to all claims by and against Kaim Chigh.

All claims by and against Karen Hamm were dismissed by stipulation.

RSI's claims for breach of contract were dismissed by the Court's summary judgment order and Rule 50 ruling.

The Court dismissed RSI's claim for conversion against 1 Domain Source as part of its Rule 50 ruling.

In the jury trial that commenced April 12, 2010, the jury found in favor of RSI on its claim for conversion against Vincent Hamm and awarded RSI \$212,685.00 in damages. The jury rejected RSI's claim for conversion against Aim High!

RSI's claim for tortious interference was dismissed by the Court's summary judgment order.

RSI's claim for deceptive trade practices under the Colorado Consumer Protection Act was dismissed by the Court's summary judgment order.

The jury found in favor of RSI on its claim for breach of fiduciary duty against Vincent Hamm and awarded \$52,453.00 in damages to RSI.

RSI's claim for unjust enrichment against 1 Domain Source was rejected by the jury.

RSI's claims for declaratory judgment and injunctive relief are denied.

All claims asserted by 1 Domain Source were dismissed by the Court's Rule 50 ruling.

The jury found in favor of Vincent Hamm and Aim High! on their breach of contract claim against RSI and awarded them \$44,315 in damages.

The jury rejected Vincent Hamm and Aim High!'s breach of contract claim against Edward Sweeney.

The jury found in favor of Vincent Hamm and Aim High! on their conversion claim against Edward Sweeney and awarded them \$3,500 in damages.

Vincent Hamm and Aim High!'s fraud claims against RSI and Edward Sweeney were rejected by the jury.

Vincent Hamm and Aim High!'s intentional interference claim was denied by the Court's Rule 50 ruling.

Vincent Hamm's promissory estoppel claims against Edward Sweeney and RSI were rejected by the jury.

Vincent Hamm and Aim High's unjust enrichment claims against RSI and Edward Sweeney were rejected by the jury.

Vincent Hamm and Aim High's claims against Charles Sweeney are dismissed without prejudice, by the Court's Order of January 28, 2011.

Vincent Hamm and Aim High's claim for declaratory relief is dismissed with prejudice by the Court's Order of January 28, 2011.

Accordingly, post-judgment interest shall accrue at the legal rate of 0.26% from the date of entry of this final judgment.

DATED at Denver, Colorado, this 1st day of February, 2011.

FOR THE COURT:

GREGORY C. LANGHAM, CLERK

By: s/ Edward P. Butler
Edward P. Butler
Deputy Clerk